

INFORMATION ON CONSENT TO PROCESS PERSONAL DATA OF MINORS

Consent is one of the grounds that can legitimize the processing of personal data.

Art. 6.1.a) GDPR.

Consent; any manifestation of free, specific, informed, and unequivocal will by which the data subject agrees, either by a statement or a clear affirmative action, to the processing of personal data concerning them. Art. 4.11 GDPR.

The controller, before obtaining consent, must provide basic information at least about their identity, the purposes of the processing, the recipients of the data, and the exercise of rights. Art. 13.1 GDPR.

The request for consent must be presented in such a way that it is clearly distinguishable from other matters, in an intelligible and easily accessible manner, and using clear and simple language. Art. 7.2 GDPR.

It is the responsibility of the data controller to prove its existence. Art. 7.1 GDPR.

Educational centers and any others that carry out activities involving minors will ensure the protection of the best interests of the minor and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services. Art. 92 LOPDGDD.

Consent for the use of their personal data will be granted by their parents or legal guardians. Art. 7.1 LOPDGDD.

MINORS UNDER 14 YEARS

The data controller will make reasonable efforts to verify that consent was given or authorized by the holder of parental authority or guardianship over the child, taking into account the available technology. Art. 8.2 GDPR.

MINORS BETWEEN

14 AND 18 YEARS

They may grant consent for the use of their personal data by themselves, unless a specific regulation requires the presence of parents or guardians. Art. 7.1 LOPDGDD. The data subject will have the right to withdraw their consent at any time. The withdrawal of consent will not affect the lawfulness of the processing based on consent prior to its withdrawal (without retroactive effects). Before giving their consent, the data subject will be informed of this. It will be as easy to withdraw consent as it is to give it. Art. 7.3 GDPR.

@AEPD_es

www.aepd.es